

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF YARTSEV AND OTHERS v. RUSSIA

(Applications nos. 35101/21 and 10 others –
see appended list)

JUDGMENT

STRASBOURG

20 July 2023

This judgment is final but it may be subject to editorial revision.



In the case of Yartsev and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 29 June 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the torture or inhuman or degrading treatment (for further details see the appended table). Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 3 OF THE CONVENTION

7. The applicants complained principally of the torture or inhuman or degrading treatment (for further details see the appended table). They relied, expressly or in substance, on Article 3 of the Convention.

8. The Court has already examined allegations concerning police brutality against peaceful participants of the political rallies (see *Zakharov and Varzhabetyan v. Russia*, nos. 35880/14 and 75926/17, §§ 74-76, 13 October 2020 with further references and, for a similar situation, *Monakhov and Seliverstov v. Russia* [Committee], nos. 19560/16 and 33300/16, §§ 7-9, 1 December 2022). Considering the Government's failure to discharge their burden of proof and produce evidence capable of casting doubt on the accounts of events provided by the applicants (see *Olisov and Others v. Russia*, nos. 10825/09 and 2 others, §§ 83-85, 2 May 2017, and *Ksenz and Others v. Russia*, nos. 45044/06 and 5 others, §§ 102-04, 12 December 2017), the Court considers those accounts established and finds that the police subjected the applicants to inhuman and degrading treatment.

9. In the leading cases of *Lyapin v. Russia,* no. 46956/09, §§ 128-40, 24 July 2014 and *Samesov v. Russia,* no. 57269/14, §§ 54-63, 20 November 2018, the Court has already held that the refusal of the authorities to conduct a full criminal investigation into the credible allegations of ill-treatment is an indication that the State has failed to fulfil its procedural obligation under Article 3 of the Convention. This is all the more so in the cases where the authorities have refused to either carry-out an official inquiry into the applicants' allegations or officially register the applicants' complaints (see the appended table).

10. The Court finds the complaints admissible and decides that there has been a violation of the substantive and procedural limbs of Article 3 of the Convention in respect of all the applicants.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. In applications nos. 35101/21, 38628/21, 14912/22 and 19044/22 the applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Tsvetkova and Others v. Russia,* nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018; *Karelin v. Russia*, no. 926/08, § 82, 20 September 2016; and *Zakharov and*

Varzhabetyan v. Russia, nos. 35880/14 and 75926/17, §§ 77-91, 13 October 2020.

V. REMAINING COMPLAINTS

12. In addition, some applicants submitted complaints under Articles 6 and 13 of the Convention. Having examined all the material before it, the Court concludes that there is no need to examine them separately in the light of its findings in paragraphs 10 and 11 above (see *Aleksandr Andreyev v. Russia*, no. 2281/06, § 71, 23 February 2016, and *Leonid Petrov v. Russia*, no. 52783/08, § 86, 11 October 2016).

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Regard being had to the documents in its possession and to its case-law (see, in particular, *Zakharov and Varzhabetyan*, cited above, and *Navalnyy and Gunko v. Russia*, no. 75186/12, 10 November 2020) the Court considers it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 3 of the Convention and the other complaints under the well-established case-law of the Court, as indicated in the appended table, admissible, and *finds* that it is not necessary to examine separately the remaining complaints raised under Articles 6 and 13 of the Convention;

4. *Holds* that these applications disclose a violation of the substantive and procedural limbs of Article 3 of the Convention in respect of all the applicants;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 20 July 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lətif Hüseynov
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 3 of the Convention (torture or inhuman or degrading treatment)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	35101/21 03/07/2021	**Dmitriy Sergeyevich YARTSEV** 1988	Ryzhov Anton Igorevich Nizhniy Novgorod	On 19/01/2020 the applicant took part in LGBTQ manifestation in Moscow during which he was beaten by police officers and then at 3.30 p.m. taken to the Arbat District police station. He was charged with an administrative offence and released at 11 p.m.	Medical certificate of 20/01/2020 by Moscow City Hospital No. 13: bruises to the soft tissue of the head and the chest. Report of a neurosurgeon no. MK 2283/20 of 20/01/2020: bruises to the soft tissue of the head and painful palpation of the spine.	On 23/01/2020 complaint to the Central District unit of the investigative committee in Moscow / On 02/06/2020 the committee informed the applicant about their decision not to carry out an inquiry into his allegations of ill-treatment.	On 09/07/2020 the applicant appealed to the Head of the Investigative Committee against the decision not to carry out an inquiry / On 23/10/2022 the appeal was dismissed. The applicant appealed against the decision not to carry the inquiry to the Presnenskiy District Court in Moscow / On 02/02/2021 it dismissed the appeal/On 12/05/2021 the Moscow City Court upheld the decision.	The applicant was not convicted due to statute of limitations.	Art. 11 (1) - various restrictions on the right to freedom of peaceful assembly - The applicant complained that because of the police violence against him during the dispersal of the demonstration he could not enjoy his right as provided for in Article 11 of the Convention (see *Zakharov and Varzhabetyan v. Russia*, nos. 35880/14 and 75926/17, §§ 77-91, 13 October 2020).	16,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
2.	38349/21 15/07/2021	**Yelena Grigoryevna AREFYEVA** 1955	Nurgaleyev Danil Ilnurovich Kazan	On 31/01/2021 the applicant participated in a demonstration in support of A. Navalnyy in Chelyabinsk, during which a police officer violently shoved her on the ground. As a result of the fall, which was registered by the CCTV, an ambulance was called and took the applicant to a local hospital.	Medical certificate of 31/01/2021 by Trauma Centre no. 8 in Chelyabinsk: fracture of the left shoulder bone. Forensic examination report no. 1359 of 26/03/2021 by the Chelyabinsk Regional Forensic Bureau: fracture of the left shoulder bone which could have occurred as a result of a traumatic impact in the circumstances described by the applicant. Medical examination report no. 191 of 21/01/2022 by the Chelyabinsk Forensic Bureau: closed fracture of the left humerus as a result of a blow, the date of which could not be determined.	i) On 01/02/2021 complaint to the Tsentralnyy district police station and on 05/02/2021 to the Chelyabinsk investigative committee/ On 11/03/2021 the latter informed the applicant that no inquiry into the allegations would be carried out. ii) On 28/10/2021, in compliance with the court's decision of 02/04/2021, the investigative committee carried out an inquiry and refused to open a criminal case.	i) On 23/03/2021 the applicant appealed against the authorities' failure to take steps to verify her allegations to the Tsentralnyy District Court in Chelyabinsk/On 02/04/2021 the court allowed the complaint in full/ on 14/05/2021 the Chelyabinsk Regional Court upheld the decision on appeal. ii) The applicant appealed against the refusal of 28/10/2021 to the Tsentralnyy District Court, which on 15/12/2021 refused to examine it as the impugned refusal had been overruled by the investigators' superiors on 14/12/2021 / Upheld on appeal by the Chelyabinsk Regional Court on 04/02/2022.			16,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	38372/21 15/07/2021	**Yegor Viktorovich POPLEVIN** 1992	Nurgaleyev Danil Ilnurovich Kazan	On 23/01/2021 the applicant participated in a demonstration in support of A. Navalnyy in St Petersburg during which he was beaten with batons by four police officers. The beating was filmed on camera.	Excerpt from medical file no. 8078/C2021 of 26/01/2021 by the Elisavetinskaya Hospital in St Petersburg: traumas of the scalp and injuries of soft tissues of back of the head.	i) On 02/02/2021 complaint to the Tsentralnyy district department of the investigative committee / On 06/03/2021 latter informed the applicant by letter that his complaint had been forwarded to the police for internal check. No further information was provided. ii) On 26/02/2022 in compliance with the court's decision of 05/10/2021, the investigative committee carried out an inquiry and refused to open a criminal case / On 06/06/2022 that decision was overruled by the investigators' superiors, but the applicant was not informed thereof.	i) On 16/03/2021 the applicant appealed against the authorities' failure to take steps to verify his allegations of ill-treatment before the Smolninskiy District Court in St Petersburg. On 22/03/2021 the court refused to examine the complaint/on 04/08/2021 the St Petersburg City Court overruled that decision on appeal and ordered a fresh examination of the complaint/On 05/10/2021 the Smolninskiy District Court allowed the complaint in full. ii) The applicant appealed against the refusal of 26/02/2022 to the Smolninskiy District Court, which on 06/06/2022 allowed it in part finding that the			16,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						iii) On 06/06/2022 another refusal to open a criminal case was issued. The applicant was not informed thereof.	investigators' failure to take steps to verify the applicant's complaint of 02/02/2021 was unlawful.			
4.	38628/21 15/07/2021	**Artem Alekseyevich RADYGIN** 2000	Nurgaleyev Danil Ilnurovich Kazan	On 23/01/2021 the applicant, a "Free Radio" journalist, reported from the Pushkin Square in Moscow where a manifestation in support of A. Navalnyy took place. At about 3 p.m. a police officer hit him in the head with a rubber truncheon. The applicant managed to film the incident.	Medical certificate of 24/01/2021 by Moscow City Hospital No. 109: bruise to the left parietal area of the head.	On 28/01/2021 the applicant complained to the Main Police Department in Moscow and on 08/04/2021 to the Tverskoy district branch of the investigative committee/ No reply to either complaint.	On 17/05/2021 the applicant appealed against the authorities' failure to take steps to verify his complaints/On 09/11/2021 the Tverskoy District Court in Moscow dismissed his appeal/On 28/03/2022 the Moscow City Court upheld the decision.		Art. 10 (1) - measures in relation to media coverage of public assemblies - Relying on Art. 10 of the Convention, the applicant complained that he had been ill-treated by police with the aim of preventing him from carrying out his journalistic activity and that his right to freedom of expression had been violated (see Najafli v. Azerbaijan, no. 2594/07, §§ 64-70, 2 October 2012).	16,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
5.	38632/21 15/07/2021	**Fedor Nikolayevich KHUDOKORMOV** 2002	Nurgaleyev Danil Ilnurovich Kazan	On 02/02/2021 the applicant participated in a demonstration in support of A. Navalnyy in Moscow during which he was hit on the head with baton by a police officer. The incident was filmed on camera.	Medical certificate of 03/02/2021 by the Sklifosovskiy Institute of Emergency Care: closed craniocerebral injury, brain concussion, injury of the soft tissue of the head.	On 04/02/2021 complaint to the Tverskoy district investigative committee / On 09/03/2021 the latter informed the applicant by a letter that his allegations had been verified without carrying out an inquiry and it was established that no physical force had been used against him. No further information was provided / On 24/05/2021 the applicant was informed that the Russian Guard Service had carried out an internal inquiry which did not disclose any violations of his rights.	On 23/03/2021 the applicant complained about the letter of 09/03/2021 to the Tverskoy District Court in Moscow alleging the authority's failure to open an inquiry into the ill-treatment / On 05/04/2021 the court refused to examine the complaint for the lack of subject matter: the applicant's complaint had not been registered by the law-enforcement authorities and no decision refusing to open a criminal case had been taken / On 30/06/2021 the Moscow City Court overruled that decision on appeal and sent the case for a fresh examination / On 25/11/2021 the Tverskoy District Court again refused to examine the complaint for the lack of subject matter /			16,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
							On 04/04/2022 the Moscow City Court overruled that decision on appeal and sent the case for a fresh examination / On 20/05/2022 Tverskoy District Court allowed the complaint/On 03/08/2022 the Moscow City Court overruled that decision on appeal and rejected the applicant's complaint having found that the lack of an inquiry into the ill-treatment allegations did not limit the applicant's access to justice.			
6.	40227/21 15/07/2021	**Aleksey Vladimirovich SKORIK** 1999	Nurgaleyev Danil Ilnurovich Kazan	On 31/01/2021 the applicant participated in a demonstration in support of A. Navalnyy in Chelyabinsk, during which a police officer shoved him on the ground. The applicant	Medical certificate of 31/01/2021 by Clinical Hospital no.1 in Chelyabinsk: closed fracture of the right kneecap.	On 02/02/2021 the ill-treatment complaint to the Tsentralnyy district investigative committee / On 11/03/2021 the latter informed the applicant by a letter dated 02/03/2021 that there	On 16/03/2021 the applicant appealed against the authorities' failure to take steps to verify his allegations to the Tsentralnyy District Court in Chelyabinsk / On 05/04/2021 the court allowed the complaint in			16,000

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				fell on the right knee and another officer hit him with a truncheon. The incident was filmed on a camera.		were no grounds for carrying out an inquiry into the allegations / No steps were taken to comply with the decision of the Tsentralnyy District Court of 05/04/2021 and take steps to verify the allegations.	full and ordered that the violation be remedied / On 15/04/2021 the decision entered into force/No steps were taken by the investigating authorities to comply with that decision.			
7.	48194/21 16/09/2021	**Andrey Vasilyevich STATOV** 1983	Bayturina Svetlana Nikolayevna Moscow	The applicant was detained on 03/08/2019 in Moscow during manifestation for fair elections to Moscow Duma by officers of the North administrative circuit police department, who repeatedly kicked him in the legs and then pushed him when taking him in the police car to the police station.	Certificate of 03/08/2019 by the Moscow Municipal Hospital no. 2: soft tissue contusion to the right tibia.	On 07/08/2019 complaint to the Moscow investigative committee / no reply other than the letter stating that the complaint had been forwarded to the police department on 18/10/2019 for internal inquiry.	On 08/12/2020 the applicant's complaint contesting the authorities' inaction in respect of his allegations of ill-treatment was rejected by the Meshchanskiy District Court in Moscow/Upheld on 18/03/2021 by the Moscow City Court (no evidence of the investigator's inaction had been found as there was no decision in respect of the applicant's allegations of ill-treatment).			8,500

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8.	50558/21 28/09/2021	**Dmitriy Olegovich KHAFIZOV** 1988	Lepekhin Andrey Gennadyevich Chelyabinsk	On 09/09/2018 the applicant participated in a protest rally in Chelyabinsk, which he filmed on his camera. Trying to prevent him from doing that, the police pushed him, and the applicant hit the pavement with his head and a police officer pressed the applicant's neck down to the ground. Then the applicant was handcuffed and taken to the Tsentralnyy district police station, where he refused to communicate his identity and undergo fingerprinting. A police officer pushed him hard in his chest, grabbed his collarbone and threw him on the table for forced fingerprinting.	Medical card no. 5755923744 of 09/09/2018: closed craniocerebral injury, brain concussion, bruise on the forehead, bruise under left eye, abrasions on both wrists. Forensic medical examination no. 6354 of 11/09/2018 by the Chelyabinsk Forensic Bureau: isolated abrasions and bruises on the face in the area of the left eye, on the upper and lower left limbs; caused by a hard blunt object 2-4 days prior to the examination; did not amount to any health damage. Forensic medical examination no. 7862 of 18/10/2018 by the same bureau: an abrasion in the area of the left eye, a bruise on	On 10/09/2018 complaint to the Chelyabinsk Investigative Committee / Refusals to open a criminal case on 10/10/2018, 18/04/2019, 29/08/2019, 07/02/2020, last - 10/06/2021. All refusals, except for the last one, were overruled by the investigators' superiors.	On 02/02/2021 the Tsentralnyy District Court in Chelyabinsk rejected the applicant's complaint against the refusal of 07/02/2020 as the impugned decision had been overruled by the investigators' superiors/upheld on 08/04/2021 by the Chelyabinsk Regional Court.	On 27/09/2018 the Tsentralnyy District Court of Chelyabinsk found the applicant guilty of having committed administrative office under Article 20.2 § 5 of the Code of Administrative Offences (Breaches of the established procedure for participation in public gatherings, meetings, demonstrations, marches or pickets).		16,000

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					the right elbow joint, left shoulder, left shin, abrasions on both wrists; caused by multiple (at least eight) blows by a hard blunt object; as to the brain concussion, it was impossible to assess its nature and gravity.					
9.	14912/22 13/12/2021	**Viktor Valentinovich LIPATOV** 1971	Valiyeva Elza Albertovna Nizhniy Novgorod	The applicant participated in a manifestation in support of Mr A. Navalnyy in Moscow on 23/01/2021 during which the police officers hit him with the truncheon on the head and the right arm.	Ambulance record of 23/10/2021: forehead wound and right arm fracture.	On 28/01/2021 complaint to the internal investigations department of the Moscow police and on 02/02/2021 complaint to the Moscow investigative committee/ On 18/02/2021 the latter informed the applicant that there were no grounds for carrying out an inquiry and on 25/06/2021 that no violation of the applicant's rights had occurred.	On 24/05/2021 the applicant complained of the authorities' inaction in respect of his ill-treatment complaint to the Presnenskiy District Court of Moscow. On 21/06/2021 the District Court rejected the complaint / On 25/08/2021 the Moscow City Court upheld that decision on appeal	Moscow City Court on 29/07/2021; article 20.2 § 5 of CAO; fine of RUB 20,000	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation in support of Mr A. Navalnyy in Moscow on 23/01/2021; conviction on 29/07/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence	16,000

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									proceedings – final decision: Moscow City Court on 29/07/2021	
10.	19044/22 29/03/2022	**Vasiliy Andreyevich SUROV** 1999	Zadorozhnaya Mariya Aleksandrovna Nizhniy Novgorod	On 23/01/2021 the applicant participated in a manifestation in support of Mr A. Navalnyy, during which he was detained by the police officers who threw him against the police van causing injuries to his face.	Medical certificate of 23/01/2021: eyelid wound, eyebrow abrasions. Expert report of 16/06/2021 confirming the above injuries.	On 28/01/2021 complaint to the Moscow investigative committee/ No information on the outcome of the complaint given, despite requests to this end.	On 17/06/2021 the applicant contested the authorities' inaction before the Presnenskiy District Court of Moscow. On 22/11/2021 the District Court dismissed the complaint as no criminal complaint had been lodged / On 25/04/2022 the Moscow City Court upheld the decision on appeal.	Moscow City Court on 29/09/2021; article 20.2 § 5 of CAO; fine of RUB 10,000	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Manifestation in support of Mr A. Navalnyy in Moscow on 23/01/2021; conviction on 29/09/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision of the Moscow City Court on 29/09/2021;	16,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
									Art. 5 (1) - unlawful deprivation of liberty - applicant taken to the police station on 23/01/2021 as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	
11.	33692/22 20/06/2022	**Aleksandr Ivanovich SILAYEV** 1958	Gerasimov Dmitriy Georgiyevich St Petersburg	On 05/05/2018 in St Petersburg the applicant was near a peaceful protest	An extract from the medical record by the Elisavetinskaya Hospital of St Petersburg of	On 08/05/2018 complaint to the St Petersburg Investigative	On 28/09/2021 the applicant contested the refusal to open a criminal case before the	On 06/05/2018 administrative-offence convictions		16,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				against the third term of Vladimir Putin's presidency, when he was pressed by a police officer against a metal fence and pushed on the ground. The officer pushed his knee on the applicant's chest. Suffering from a pre-existing heart condition, the applicant begged the officer to take the foot off and to call an ambulance but to no avail. The case file contains photos of the applicant on the ground visibly suffering surrounded by riot police officers in combat gear. The applicant was then taken to a police station where he was examined by an ambulance medical	05/05/2018: ischemic heart disease, angina pectoris, cardiosclerosis and hypertension.	Committee / On 07/12/2018 complaint to police unit no. 28 of the Central District of St Petersburg/ On an unspecified date in 2018 refusal to open a criminal case (the applicant was not informed thereof) /overruled by the investigators' superiors on 17/05/2019/ Subsequent refusals overruled on 19/06/2019, and 04/10/2020.	Kuybyshevskiy District Court in St Petersburg refused to examine the complaint as the refusal of 04/10/2020 had been overruled on 17/08/2021/on 21/12/2021 upheld by the St Petersburg City Court.	under Articles 19.3(1) and 20.2(5) of the CAO by the Primorskiy District Court of St Petersburg.		

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				team and taken to the hospital from which he was discharged on the same day. In the ensuing domestic proceedings, the police officer in question claimed that the applicant had refused to follow the police orders to stop the protest activity.						

[1] Plus any tax that may be chargeable to the applicants.